THE STATE
versus
TAFADZWA CHAZIKA

HIGH COURT OF ZIMBABWE
MAWADZE DJP & MUCHAWA J
HARARE; 3 February 2026

Review Judgment

MUCHAWA J: This record was placed before me at the instance of the scrutinizing regional magistrate sitting at Harare. The referral is in terms of S 58 (3) (b) of the Magistrates court Act [*Chapter 7:10*] which empowers the scrutinizing regional magistrate, if it appears to him or her that doubt exists whether the proceedings are in accordance with real and substantial justice, to cause the record to be forwarded to the registrar who shall cause the papers to be placed before a judge of the High Court for review in terms of the High Court Act [*Chapter 7: 06*].

The accused was charged with contravening section 4 of the Copper Control Act [Chapter 14:06] as read with s 4 A (3) of the Copper Control Amendment No. 6 of 2022 possessing copper without a certificate of origin. It was alleged that on 17 December 2024 and along Angelbeck Road, Matapi, Harare, the accused unlawfully and intentionally possessed scrap copper without a certificate of origin thereby contravening the said Act.

The accused pleaded not guilty to this offence but was convicted after a full trial. The trial court was satisfied that the essential elements of the offence had been satisfied. The scrutinizing magistrate had no issues with these findings.

On special circumstances the accused submitted that he is an orphan, a scrap metal collector and that was his source of living as he moved around searching and collecting any metal pieces to sell. Anything metal that he came across, he picked. He claimed to have no knowledge of the various pieces of metal, even how copper looks like. He had treated it as any other metal. He pleaded to being spared from the minimum mandatory sentence of ten years imprisonment.

The public prosecutor did not dispute this and submitted that the purpose of the legislature was to curb tampering with damage or destruction of utilities through theft of copper cables. In the present case the accused was found in possession of scrap copper

amongst other small pieces of metal so chances he picked the scrap copper just like he did the other 8 metal pieces are very high. He therefore agreed that this could constitute special circumstances.

The trial court accepted the special circumstances after reasoning as follows:

> "I would agree with you State counsel. Accused is in scrap business. No evidence was led he could have vandalized or tampered with any utilities in order to obtain the copper. The State paper specifically makes reference to scrap copper just like the other small 8 pieces of metal he was found in possession of. Therefore, I would accept accused's submissions as special circumstances."

The accused was sentenced to 12 months imprisonment, of which 3 months imprisonment was suspended for 5 years on condition of good behaviour. The remainder of 9 months imprisonment was suspended on condition the offender completes 315 hours of community service at Mbare ZRP on the usual conditions.

The regional magistrate had issues with the findings on special circumstances. He raised a query with the trial magistrate. His view was that the finding on special circumstances went to the root of the charge of possession and the conviction could not stand if the accused was not aware that he had scrap copper in his possession.

It was the reginal magistrate's view that an accused who is convicted of possession should have knowledge that the property or *res* which is the basis of the charge is the offending property. In this case, it was the copper. If indeed the accused was not aware it was copper, then that would bring in reasonable doubt, this making the convictions unsafe. Reference was made to the cases of *S* v *Mpa* 2014 (1) ZLR 572 (H) and *S* v *Smith* (4) CPD 1966.

The trial magistrate responded to the queries and insisted that the conviction was proper as the evidence proved the accused was the owner of the satchel and that he knew he had possession of the scrap copper.

In response to the regional magistrate's query, the trial magistrate said the following:

> "During trial accused never mentioned ignorance on the type of metal. He never raised such a defence nor cross-examined witnesses on that aspect. He was outrightly denying the allegations. It was only after conviction and in special circumstances when he raised the subject issue. I did not take such averments as new evidence in defence but viewed it as admission and acceptance of his conviction. I also viewed it as a sign of remorsefulness which stems from his poverty-stricken life, the need to survive. I also ruled out that accused was an unsophisticated person who appears ignorant of the laws governing the control of copper. This was despite the numerous explanations by the court to him concerning the charge of the prescribed sentence.
> With that said, it is my humble submission that I did not accept accused submissions as valid for complete defence but an admission and acceptance of the conviction. A sign of

> remorsefulness which convinced me the commission of the offence was not motivated by economic gain but need to survive. This in my view constitutes special circumstances. However, I stand guided."

In the circumstances of this case, the regional magistrate puts the issue succinctly as follows

> "I hold the view that either the finding on special circumstances based on the notion that the accused had no knowledge that it was copper is erroneous or incompetent or that the conviction was not safe if it appeared to the trial magistrate that indeed the accused had no knowledge of the type of metal in his possession."

The trial magistrate does not make it clear in his findings on special circumstances that he ruled out that the accused had no knowledge of how copper looks like. He simply said he accepted accused's submissions on special circumstances. The regional magistrate is therefore justified in raising the queries she raised. A court's finding should be clear on the face of it and not be subject to external justification. In a presentation by the Honourable Chief Justice LUKE MALABA at the Judges Symposium in 2023 stated that:

> "A court order's wording must be unambiguous and must clearly convey the decision of the court. It must not be subject to subsequent clarifications."

Though the ruling on special circumstances was not necessarily a court order, the same principle is applicable to it. This is why I have written this judgment in answer to the issue put out by the regional magistrate who had every reason to believe that the trial court had accepted even that the accused did not know what copper looks like.

The case of *S* v *Mpa* supra traversed this issue conclusively. It was held as follows:

> "It is trite that the burden of proof in a criminal trial lies with the state to prove the case beyond reasonable doubt. In cases of criminal possession, the state must not only prove the physical element of possession but also the mental element.
> In *S* v *Young* 1983(1) ZLR 258(S) at 261 states:

"In *S* v *Smith* 1965(4) SA 166(c) CORBETT J pointed out that this element of *mens rea* should not be confused with and must not be identified with the mental element which must be proved in order to establish the act of possession. He stated at p 171:

> "The weight of this authority [*R* v *Sibanda* (supra)] is undoubtedly in favour of the general proposition that, where a person is charged with the contravention of a statutory provision which prohibits the possession of certain articles except under authority of a permit, *mens rea* in the sense of the accused person knowing that he was in his custody or under his control the forbidden article is normally an essential ingredient of the offence and the onus of establishing such *mens rea* lies upon the state."

In the latest case of *Munashe Maphosa* v *The State* SC 07/26 where possession of a pangolin trophy was in issue, it was held as follows.

> "In this case, the court *a quo* erred in concluding that it was enough that the appellant had the legal possession of the pangolin trophy without considering whether he had the requisite *mens rea*, to possess the trophy contrary to law."

In the case before me the trial magistrate noted that the two witnesses for the State were police officers whose evidence was similar in all material respects. Both confirmed stopping the accused, searching in his satchel and recovering scrap copper metal. They were accepted as credible witnesses.

The judgment and evidence of the State falls short of proving that the accused had the requisite *mens rea* to possess the scrap copper contrary to law. Proving the mental element would have entailed establishing that the accused knew that he had in his possession the forbidden copper. This is an essential element of the offence and the onus to prove it lies on the State and not the accused to disprove as suggested by the trial magistrate.

Had this element been dealt with, the arising conundrum in this matter would not have arisen. We would not have a conviction and then special circumstances speaking to lack of *mens rea*.

It is therefore my view that the conviction was unsafe. Unfortunately, in this case the accused was sentenced on 6 May 2025 and has already completed his sentence.

This judgment is meant to assist magistrates and prosecutors when they deal with similar matters.

On this matter I make the following order.

1. The conviction is hereby set aside and the sentence is quashed.

1.1 The accused is found not guilty and is acquitted.

MUCHAWA J…….....

MAWADZE DJP AGREES……..